

26STCP03027 26STCP03027

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 26STCP03027 Hearing Date: September 16, 2026 Dept: 833

West Coast Arborists, Inc. Case No. 26STCP03027

Hearing:

September 16, 2026

v.

Location:

Stanley Mosk Courthouse

Department:

833

City

of Norwalk, et. al. Judge:

Joseph Lipner

and

North

Star Land Care, Real-Party-in-Interest

Order Denying Application for Preliminary

Injunction

Petitioner

West Coast Arborists ("Petitioner") requests a preliminary injunction ordering Respondents

City of Norwalk and the City Council of the City of Norwalk (collectively, the

"City") from (a) executing any contract or agreement with Real Party in

Interest North Star Land Care; and/or (b) issuing any Notice to Proceed or otherwise authorizing the commencement of work under the award made on August 4, 2026, and/or (c) suspending commencement of any contract executed.

The
Court DENIES the application for a preliminary injunction.

LEGAL STANDARD

The purpose of a preliminary injunction is to preserve the status quo pending a decision on the merits. (Major v. Miraverde Homeowners Ass'n. (1992) 7 Cal. App. 4th 618, 623.) In deciding whether or not to grant a preliminary injunction, the court looks to two factors, including "(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (White v. Davis (2003) 30 Cal.4th 528, 553-54.) The factors are interrelated, with a greater showing on one permitting a lesser showing on the other. (Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) However, the party seeking an injunction must demonstrate at least a reasonable probability of success on the merits. (IT Corp. v. County of Imperial (1983) 35 Cal.3d 63, 73-74.) The party seeking the injunction bears the burden of demonstrating both a likelihood of success on the merits and the occurrence of irreparable harm. (Savage v. Trammell Crow Co. (1990) 223 Cal.App.3d 1562, 1571.) Irreparable harm may exist if the plaintiff can show an inadequate remedy at law. (CCP § 526(a).)

"The granting or denying of a preliminary injunction does not constitute an adjudication of the ultimate rights in controversy." (Cohen v. Board of Supervisors (1985) 40 Cal.3d 277, 286; see also Yee v. American National Ins. Co. (2015) 235 Cal.App.4th 453, 457-458 ["a preliminary injunction is not a determination on the merits...."].)

DISCUSSION

A. Judicial Notice

The Court grants the
request for judicial notice ("RJN").

B. Evidentiary Objections

The Court overrules the evidentiary objections.

C. Summary of Facts

The application is based on Petitioner's cause of action for writ of mandate.

Petitioner is a California corporation engaged in providing professional tree-maintenance and urban-forestry services to public agencies throughout California. (Mahoney Decl., ¶ 2.) Petitioner has furnished citywide tree-maintenance services to the City for 32 years. (Ibid.)

The City invited bids for citywide tree maintenance services. (Mahoney Decl., ¶ 5.) Petitioner states that they own the equipment necessary to perform the work called for by the City's Invitation for a Bid for Citywide Tree Maintenance Services. (Mahoney Decl., ¶¶ 3-4.)

Petitioner and North Star Land Care both submitted bids. (Mahoney Decl., ¶¶ 6-7.) The request for bids said that the low bidder "shall be determined by rates as provided in Exhibit A." (Mahoney Decl., Exh. 1, Addendum 2.) The request for bids also stated that "[u]nauthorized conditions, limitations, or provisions attached to a Bid will render the Bid non-conforming and non-responsive and may cause its rejection." (Exhibit 1, p. 7.)

Petitioner argues that it provided the prices for all of its work on Exhibit A, and included no extra charges for equipment rental or usage. (Mahoney Decl, Exh. 3, Exh. A.) However, North Star Land Care submitted a separate addendum on their Exhibit A, an out-of-form "Additional Price Sheet Note", repricing categories already covered by Exhibit A rates. (Mahoney Decl, Exh. 2, pgs. 40-41.)

The City awarded the contract to North Star Land Care. (Mahoney Decl., ¶ 10.) The City found North Star Land Care's bid was \$530,406 while West Coast Arborist, Inc.'s bid was \$705,762. (Mahoney Decl., Exh. 6.) Petitioner submitted a protest, but the City denied the protest. (Mahoney Decl., ¶¶ 9, 11.) The City stated that the Additional Price Sheet Note was not considered

during the evaluation of North Star Land Care's bid, and would not be incorporated into the resulting contract with the City. (Mahoney Decl., Exh. 7; Mendoza Decl., ¶¶ 6, 9.)

The City has also produced the contract it intends to sign with North Star Land Care. The contract states: "The 'Additional Price Sheet Note' submitted by Contractor in connection with City's IFB No. 26-859 shall not be incorporated into or form part of this Agreement." (RJN, Exh. 3, Agreement, § 1, p. 1.) The Compensation Agreement also states that "Any 'Additional Pricing Sheet Note' submitted by Contractor in connection with City's IFB No. 26-859 shall not be incorporated into or form part of this Agreement." (RJN, Exh. 3, Agreement, § 5.1, p. 7.) The Compensation Agreement also states that the City will pay North Star Land Care the amount of money (\$530,406.00) that shows up in Exhibit A of North Star Land Care's bid.

If the City executes the contract with North Star Land Care, Petitioner argues they will lose a public contract that was not lawfully awarded to the lowest responsive bidder. (Mahoney Decl., ¶ 14.) It will become a lot harder to restore the parties to their present position once North Star Land Care begins performance. (Ibid.)

By contrast, the City states delaying execution of the contract with North Star Land Care will cost the City and its taxpayers \$175,356 per year, and limit or reduce any savings. (Mahoney Decl., ¶ 12.)

Based on testimony from the President of Petitioner, the contract with North Star Land Care would increase costs by 20%. (Mahoney Decl., ¶ 15.)

D. Plaintiff's Likelihood of Success on the Merits

The application is based on Petitioner's cause of action for writ of mandate.

1.

Writ of Mandate

There are two essential requirements to the issuance of an ordinary writ of mandate under Code of Civil Procedure section 1085: (1) a clear, present, and ministerial duty on the part of the respondent, and (2) a

clear, present, and beneficial right on the part of the petitioner to the performance of that duty. (California Ass'n for Health Services at Home v. Department of Health Services (2007) 148 Cal.App.4th 696, 704.) "An action in ordinary mandamus is proper where ... the claim is that an agency has failed to act as required by law." (Id. at 705.)

"A basic rule of competitive bidding is that bids must conform to specifications, and that if a bid does not so conform, it may not be accepted. [Citations.] However, it is further well established that a bid which substantially conforms to a call for bids may, though it is not strictly responsive, be accepted if the variance cannot have affected the amount of the bid or given a bidder an advantage or benefit not allowed other bidders or, in other words, if the variance is inconsequential." (Ghilotti Construction Co. v. City of Richmond (1996) 45 Cal.App.4th 897, 904-905.) In other words, Petitioner indicates there is a mandatory duty to reject material deviations from the specifications listed in a call for bids.

As an initial matter, the Court cannot determine based on this record that there is even a mandatory ministerial duty at issue in this case. Petitioner did not cite a statute laying out a ministerial duty. The Public Contract Code's competitive-bidding requirement for general law cities applies to "public projects" (Public Contract Code, §§ 20161, 20162), and the Code confirms that "landscape maintenance, including . . . trimming, pruning, planting, [and] replacement of plants" is "maintenance work," not a public project. (Public Contract Code, § 22002, subds. (c), (d)(4).)

Even if there is a ministerial duty at issue, the Court does not find Petitioner has shown it is likely to prevail on the merits. Petitioner argues that North Star Land Care's "Additional Price Note" is a material deviation from the specification listed in the bid because it (1) affects the true amount and cost of the bid; (2) confers a competitive advantage because North Star Land Care was able to supply artificial low Exhibit A rates while hiding costs elsewhere; (3) introduces conditions not called for and never authorized by addendum; and (4) is internally inconsistent. (Ex Parte Application for TRO and OSC re: Preliminary Injunction, pg. 10.)

Petitioner also argues that the City cannot cure its violation of a mandatory duty by saying that the Additional Price Sheet Note was not considered during the evaluation of North Star Land Care's bid, and would not be incorporated into the resulting contract

with the City. (Mahoney Decl., Exh. 7.) Without any citation to legal authority, Petitioner states: “A city cannot retroactively transform a non-responsive bid into a responsive one by promising to ignore the offending terms after the award.” (Ex Parte Application for TRO and OSC re: Preliminary Injunction, 11:11-12.)

The Court does not agree with Petitioner. The City has confirmed that the additional price note played no part in the City’s selection of North Star’s contract. (Mendoza Decl., ¶¶ 6, 9.) The City’s own analysis (Mahoney Decl., Exh. E.) does not indicate that any of the rates in the Additional Price Sheet factored into the City’s decision. There is nothing left for North Star’s deviation from the requirements to have affected. Since nothing was affected, North Star’s deviation was not material, and the City can select North Star’s bid.

Petitioner cites a variety of cases on Page 9 of the ex parte application but they involve cases where the awarding agency used, credited, or relied upon a deviation in determining the winning bid or the resulting contract terms. Thus, those cases are inapposite here.

The argument that North Star Land Care’s bid was “internally inconsistent” does not mean that Petitioner would prevail on a petition for writ of mandate claim. Petitioner cites no authority holding that an agency’s decision to excise and disregard a non-conforming attachment — rather than accept it — renders the underlying, conforming bid ambiguous or non-responsive.

On reply, Petitioner argues that the City only announced that it would not “honor” the Additional Price Sheet after Petitioner contested North Star Land Care’s bid. (Reply, 3:1-2.) This argument is unpersuasive. There is nothing suspicious or problematic about the City stating it would not honor the price sheet. The City was not required to announce anything about the Additional Price Sheet at any point.

Petitioner also claims that an inspector for the City of Azusa will testify that North Star Land Care does intend to use its supplemental pricing in the performance of its public contracts – including by billing public agencies separately for equipment. (Mahaffey Decl., ¶¶ 5–6.) This argument is also unpersuasive.

The Mahffaeey declaration provides no explanation for why an inspector

for the City of Azusa knows more about plans for the City of Norwalk than the City of Norwalk itself. The City has confirmed that the additional price note played no part in the City's selection of North Star's contract. (Mendoza Decl., ¶¶ 6, 9.) The actual Agreement between the City and North Star Land Care states the following: "The 'Additional Price Sheet Note' submitted by Contractor in connection with City's IFB No. 26-859 shall not be incorporated into or form part of this Agreement." (RJN, Exh. 3, Agreement, § 1, p. 1.) The Compensation Agreement also states that "Any 'Additional Pricing Sheet Note' submitted by Contractor in connection with City's IFB No. 26-859 shall not be incorporated into or form part of this Agreement." (RJN, Exh. 3, Agreement, § 5.1, p. 7.)

Finally, the mere fact that the City chose to be very explicit that the Additional Price Note would not be part of the contract is not evidence that the "City understood the document to carry real competitive and financial significance." (Reply, 4:16-17.) The City could have decided to be explicit about the Additional Price Note to reduce the risk of future litigation. This does not provide any indication of what the City was doing when deciding on the bid.

Based on the record, the Court finds Petitioner is unlikely to prevail on a petition for writ of mandate.

E. Balance of Harms

For the second factor, the court must consider "the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued." (Smith v. Adventist Health System/West (2010) 182 Cal.App.4th 729, 749.) "Irreparable harm" generally means that the defendant's act constitutes an actual or threatened injury to the personal or property rights of the plaintiff that cannot be compensated by a damages award. (See Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410.) The showing of harm is even more demanding when a Plaintiff seeks injunctive relief against a public entity because "[t]here is a general rule against enjoining public officers or agencies from performing their duties." (Tahoe Keys Property Owners' Assn. v. State Water Resources Control Bd. (1994) 23 Cal.App.4th 1459, 1471.)

Petitioner argues that once the City moves forward with a contract with North Star Land Care, it will be a lot harder to unwind the award and restore the parties to their present positions. (Mahoney Decl., ¶ 14.)

As a matter of California law, a disappointed bidder may not recover the lost contract or its lost profits; its sole damages remedy is recovery of bid-preparation costs. (Kajima/Ray Wilson v. Los Angeles County Metropolitan Transportation Authority (2000) 23 Cal.4th 305.) Thus, Petitioner argues there is no way to make it whole if the contract moves forward.

Petitioner further states that interim harm to the City from a preliminary injunction is minimal because Petitioner is currently performing the work North Star Land Care would on a month-to-month basis. Finally, Petitioner argues that enforcing competitive bidding laws serves the public interest.

The Court disagrees. The record indicates that the City addressed the public interest – it evaluated all bidders on the same required form and awarded the contract to the bidder with the lowest price. The Court also notes that the City will suffer a loss if it is required to continue relying on Petitioner to maintain trees.

As the Court noted above, Petitioner must meet a high threshold to obtain injunctive relief against a public entity. Petitioner did not meet that standard here. By all accounts, the City evaluated all the bids and gave the contract to the bidder with the lowest price. Petitioner's injuries are speculative, especially the idea that it might be harder to unwind a contract with North Star Land Care once the contract has started. There is no actual evidence to support why it would be harder to unwind such a contract.

The balance of harms favors the Court denying a preliminary injunction.

CONCLUSION

The
Court DENIES the application for a preliminary injunction.

IT IS SO ORDERED.

Dated: September 16,

2026

Joseph
Lipner

Superior
Court Judge